

DOCKET NO. 22-25

B & G FUTURES INC.,
*REVOCATION OF OCEAN TRANSPORTATION
INTERMEDIARY LICENSE NO. 026512NF*

On or about November 16, 2021, BCL received a form FMC-18 Application (Application) to replace the qualifying individual (QI) for the OTI license of B & G Futures Inc. (B & G) from Robert Waalkes to Lorie Obrzut (Exhibit A). The statement on the complaint filed is false where it states that, on or around November 17, 2021 the application to replace qualified individual (QI) is to be Steven DiPietro. BCL staff was aware that Lorie Obrzut is the replacement qualified individual (QI) as per the application submitted by DPI (Exhibit B).

B & G Futures Inc. and Mr. Steven DiPietro are not in violation of 46 CFR § 515.16(a)(3), particularly regarding the employment of Robert Waalkes (Exhibit C). Mr. Waalkes was employed on a commission basis, whereby; should Mr. Waalkes bring revenue generating business opportunity, then Mr. Waalkes would be financially compensated on a deal-by-deal basis. During employment, Robert Waalkes did not generate any business and as such did not receive monetary compensation.

On or around August 26, 2022, Robert Waalkes sent an email to BCL staff confirming employment and knowledge of B & G Futures Inc (Exhibit D). Due to computer issues a copy was not available (Exhibit E). In light of this, Mr. Waalkes has signed an affidavit (Exhibit F) to assure the court and respective agencies reconfirming employment and that due to health issues Mr. Waalkes was not of sound mind and clarity when communicating with BCL staff.

On the claim of 46 CFR § 515.16(a)(2), B & G Futures Inc. was under the notion, when hiring the services of DPI, that "ALL" matters related to the Federal Maritime Commission were monitored and addressed by them. As such B & G Futures Inc did not communicate directly with BCL staff under the assumption that DPI was addressing the matters (Exhibit G).

B & G Futures Inc. and its staff humbly apologize to the courts and to the respective governing bodies for not following up with BCL staff directly, however this was an honest and sincere mistake as the assumption was DPI would handle all matters.

In view of the above, B & G Futures Inc. respectfully requests reinstatement of OTI license number 026512NF.

EXHIBIT A

Form **FMC-18****APPLICATION FOR A LICENSE**

OMB No. 3072-0018

(Rev October 2007)

AS AN OCEAN TRANSPORTATION INTERMEDIARY

(Expires 03/31/2019)

Federal Maritime
Commission**PART A****GENERAL
TO BE COMPLETED BY ALL APPLICANTS**

APPLICATION MUST BE TYPED

a. Name of corporation, partnership, or sole proprietorship:

License No. (if any)

B & G FUTURES INC.**026512NF**

b. Trade name(s):

☐ Trade name used for NVOCC services only☐ Trade name used for OFF services only☐ Trade name used for both services

c. Principal Place of Business Address: number, street, and room or suite number:

3700 COLUMBUS ROAD NE

d. City or town, state, ZIP code, and country:

CANTON**OH****44705****United States**

e. (Area code) telephone number:

(Area code) fax number:

Website

330-493-0034**330-493-3443**

f. E-Mail address/URL of contact person or QI:

Name of Contact Person or QI:

STEVE@BGFUTURES.COM**STEVEN P. DIPIETRO**

g. Is this a new address?

☐ Yes☒ No

h. Mailing address if different from principal place of business (P.O. Boxes may be used):

City or town, state, ZIP code, and country:

i. Application for (check as many as applicable and complete the designated Parts for the boxes checked):

- ☐ new license to operate as an ocean freight forwarder (Parts A, B, D, E, F, G)
- ☐ new license to operate as a non-vessel-operating common carrier (Parts A, B, D, E, F, G)
- ☐ new license to operate as both an ocean freight forwarder and a non-vessel-operating common carrier (Parts A, B, D, E, F, G)
- ☐ name change (Parts A, C, G)
- ☐ addition / removal of trade name(s) (Parts A, C, G)
- ☒ replacement/additional qualifying individual (Parts A, D, E, G)
- ☐ business structure change (Parts A, B, E, F, G)

Filing Id: **114378**Application Name: **B & G FUTURES INC. - REPLACE QI****BEIC000031**Status: **Submitted**Date: **11/16/2021**

☐ license transfer (Parts A, B, C, E, F, G)

Current name _____

to _____

☐ adding NVOCC services to active OFF license (Parts A, F, G)

☐ adding OFF services to active NVOCC license (Parts A, F, G)

All questions within applicable parts must be answered or noted "N/A."

PART D**QUALIFYING INDIVIDUAL**

TO BE COMPLETED BY APPLICANTS FOR AN OCEAN TRANSPORTATION INTERMEDIARY LICENSE
AND REPLACEMENT / ADDITIONAL QUALIFYING INDIVIDUALS

9. Name of proposed qualifying individual:

LORIE**OBRZUT**

Title:

SECRETARY

Business address: number, street, and room or suite number, city, state, zip code, country (If different from principal address)

3700 COLUMBUS ROAD NE**CANTON****OH****44705****United States**

S.S. Number:

DOB

Place of Birth

City, state, country

8/2/1961**WILMINGTON****DE****United States**

US Citizen or Resident Alien: (If Resident Alien provide No.)

US Citizen

10. Is the proposed qualifying individual a (an):

Initial Qualifying Individual

☐

Additional Qualifying Individual

☐

Replacement Qualifying Individual

☒

(Name of individual being replaced:

ROBERT WAALKES

11. Position the qualifying individual holds as a corporate officer, member, or active partner:

SECRETARY

(Attach proof of position held, i.e., minutes from meeting electing officers)

12. Length of qualifying ocean transportation intermediary experience (Years/Months)

28 years /**2 months**

13. Has the proposed qualifying individual(s) ever:

(1) been submitted as the qualifying individual for another company?

☐ Yes ☒ No

(2) been found in violation of any shipping act?

☐ Yes ☒ No

or paid penalty in settlement of?

☐ Yes ☒ No(3) filed or been involved in a bankruptcy proceeding, other than as a claimant,
been declared bankrupt, been subject to a tax lien, or had legal judgment
rendered for a debt?☐ Yes ☒ No(4) been ARRESTED, CHARGED, CONVICTED OF, OR FORFEITED
COLLATERAL for any FELONY, MISDEMEANOR, OR OTHER VIOLATION?☐ Yes ☒ No

(Omit: 1. traffic violations for which a fine of \$250 or less was paid;

2. any incident which happened before qualifying individual's 21 birthday.

If the response to any part of this question is "Yes", please attach explanation. For bankruptcy, please include order of discharge

For tax lien, please provide release of lien. For judgment, please provide satisfaction of civil judgment.

14. Employment history of qualifying individual demonstrating experience in ocean transportation intermediary services:

(Enter most recent history first)

(a) Employer's name: **B & G FUTURES INC.** Dates employed: (Month/Year) **07/2020** to **/Present**

Number, street, and room or suite number: **3700 COLUMBUS ROAD NE** FMC License No. (If applicable): **026512NF**

City or town, state, and ZIP code: **CANTON OH 44705**

Area code/telephone number: **330-493-0034** Area code/fax number: **330-493-3443** Email address: **STEVE@BGFUTURES.COM**

Name of Supervisor: **STEVEN P. DIPIETRO** Type of business: **NVOCC, FREIGHT FORWARDER**

Description of ocean transportation intermediary duties performed:

ALL ASPECTS OF NVOCC AND FREIGHT FORWARDER SERVICES. PLEASE SEE ATTACHED FOR ADDITIONAL DETAILS.

(b) Employer's name: **UPS SUPPLY CHAIN SOLUTIONS, INC.** Dates employed: (Month/Year) **09/1993** to **07/2020**

Number, street, and room or suite number: **12380 MORRIS ROAD** FMC License No. (If applicable): **000275F**

City or town, state, and ZIP code: **ALPHARETTA GA 30005**

Area code/telephone number: **800-742-5727** Area code/fax number: **NOT APPLICABLE** Email address: **LIZWILLIAMS@UPS.COM**

Name of Supervisor: **LIZ WILLIAMS** Type of business: **FREIGHT FORWARDER**

Description of ocean transportation intermediary duties performed:

ALL ASPECTS OF FREIGHT FORWARDER SERVICES; PLEASE SEE ATTACHED CHECKLIST FOR ADDITIONAL DETAIL. ALL ASPECTS OF NVOCC SERVICES HANDLED AS AGENT OF UPS OCEAN FREIGHT SERVICES, INC. (FMC-OTI No. 016781N); PLEASE SEE ATTACHED CHECKLIST FOR ADDITIONAL DETAIL.

15. Identify three (3) persons, unrelated to the qualifying individual or applicant, who have first-hand knowledge of the actual ocean transportation intermediary experience of the qualifying individual.

Name:

MARY GIBSON

Title:

CUSTOMER EXPERIENCE DESIGN EXECUTIVE

Employer's name:

UPS SUPPLY CHAIN SOLUTIONS, INC.

Number, street, and room or suite number:

2700 GREEN ROAD, BLDG. M**SUITE 300**

City or town, state, and ZIP code:

HOUSTON**TX****77032**

Area code/telephone number:

585-216-5360

Area code/fax number:

585-216-5360

Email address:

MARY.GIBSON@UPS.COM

Time period when person named above had knowledge of qualifying individual's experience.

SEPTEMBER 1999 TO JULY 2020

Nature of business relationship through which person gained first-hand knowledge of the qualifying individual's ocean transportation intermediary experience.

CO-WORKERS AT UPS SUPPLY CHAIN SOLUTIONS, INC. (FMC-OTI NO. 000275F)

Name:

PEGGY LEE

Title:

EXPORT MANAGER

Employer's name:

LEWCO, INC.

Number, street, and room or suite number:

706 LANE STREET

City or town, state, and ZIP code:

SANDUSKY**OH****44870**

Area code/telephone number:

419-503-2735

Area code/fax number:

419-503-2735

Email address:

PLEE@LEWCOINC.COM

Time period when person named above had knowledge of qualifying individual's experience.

MAY 1997 TO PRESENT

Nature of business relationship through which person gained first-hand knowledge of the qualifying individual's ocean transportation intermediary experience.

CUSTOMER: SHIPPER-CARRIER RELATIONSHIP

Name:

RANDY FRALEY

Title:

ACCOUNT EXECUTIVE

Employer's name:

SHIPCO TRANSPORT INC.

Number, street, and room or suite number:

699 SUPREME DRIVE

City or town, state, and ZIP code:

BENSENVILLE**IL****60606**

Area code/telephone number:

216-466-4240

Area code/fax number:

216-466-4240

Email address:

RFRALEY@SHIPCO.COM

Time period when person named above had knowledge of qualifying individual's experience.

JUNE 2011 TO PRESENT

Nature of business relationship through which person gained first-hand knowledge of the qualifying individual's ocean transportation intermediary experience.

SHIPPER-CARRIER AND CARRIER-SHIPPER RELATIONSHIP

Name:

VICKIE NERONI

Title:

ACCOUNT EXECUTIVE

Employer's name:

MEDITERRANEAN SHIPPING COMPANY S.A.

Number, street, and room or suite number:

555 ANTON BLVD.**SUITE 1050**

City or town, state, and ZIP code:

COSTA MESA**CA****92626**

Area code/telephone number:

216-571-5608

Area code/fax number:

216-571-5608

Email address:

VICKIE.MERONI@MSC.COM

Time period when person named above had knowledge of qualifying individual's experience.

JULY 1999 TO PRESENT

Nature of business relationship through which person gained first-hand knowledge of the qualifying individual's ocean transportation intermediary experience.

VOCC: SHIPPER-CARRIER RELATIONSHIP

PART E**OWNERSHIP AND AFFILIATIONS**

TO BE COMPLETED BY APPLICANTS FOR AN OCEAN TRANSPORTATION INTERMEDIARY LICENSE, AND TO REPORT OWNERSHIP CHANGES, BUSINESS STRUCTURE CHANGE, LICENSE TRANSFER, AND IF APPLICABLE, CHANGES RESULTING FROM A CHANGE IN PERSONNEL OR REPLACEMENT/ADDITIONAL QUALIFYING INDIVIDUAL

16. Applicant's Ownership, Officers, Partners, Members, Directors, Stockholders, Parent or Holding Company:

Name of
Officer/Director/Partner/Stockholder/Business Entity

First Name: STEVE	Middle Name: _____	Last Name: DIPIETRO
Title: PRESIDENT	S.S. Number: XXXXXXXXXX	
Business Entity Name: _____	% of Ownership: 50.00 %	
First Name: LORIE	Middle Name: _____	Last Name: OBRZUT
Title: SECRETARY	S.S. Number: XXXXXXXXXX	
Business Entity Name: _____	% of Ownership: 0.00 %	
First Name: AMI	Middle Name: _____	Last Name: VYAS
Title: TREASURER	S.S. Number: XXXXXXXXXX	
Business Entity Name: _____	% of Ownership: 50.00 %	

17. If applicant will operate as an OFF, will applicant, its qualifying individual(s), or any officer, director, partner, member, stockholder, parent or holding company have a beneficial interest in shipments moving in the U.S.

foreign commerce? ☐ Yes ☒ No ☐ N/A – Applicant will not operate as an OFF

If "Yes," identify the name and address of each person or entity having a beneficial, proprietary, or financial interest in shipments moving in the U.S. foreign commerce and the nature of such beneficial interest.

Describe Related Company

First Name: _____ Middle Name: _____ Last Name: _____ Business Entity Name: _____

Nature of Beneficial Interest: _____

18. Is either applicant or its qualifying individual(s) related to any other entity by reason of ownership, employment, common officers, members, directors, stockholders, parent or holding company? ☒ Yes ☐ No

If "Yes," identify the name, address, and phone number of each entity related to the applicant or its qualifying individual; describe the relationship or affiliation to applicant or qualifying individual and the type of business in which such entity is engaged. Describe the primary business of the parent or holding company or related company. You may submit organization charts and annual reports which provide the information.

Person or Business Entity in Question 16 that has Relationship

First name:	Middle Name	Last Name:	Business Entity Name:
			SDDJ, LLC

Related Business Entity:

Business Entity Name:

SDDJ, LLC

Related Business Entity's Address/Phone:

Number/Street/Suite Number:	City:	State:
411 OBERLIN AVENUE SW	MASSILLON	OH

Country:	Zip:	Telephone:
United States	44647	330-493-3377

Primary Business of Related Entity:

DORMANT – NOT ACTIVE.

Nature of Relationship or Affiliation:

STEVE DIPIETRO IS ALSO A MEMBER AND MANAGER OF SDDJ, LLC.

Person or Business Entity in Question 16 that has Relationship

First name:

Middle Name

Last Name:

Business Entity Name:

NORTH CANTON GOLF, LLC

Related Business Entity:

Business Entity Name:

NORTH CANTON GOLF, LLC

Related Business Entity's Address/Phone:

Number/Street/Suite Number:

City:

State:

1500 ROGWIN CIRCLE**NORTH CANTON****OH**

Country:

Zip:

Telephone:

United States**44720****330-493-3377**

Primary Business of Related Entity:

GOLF COURSE MANAGEMENT.

Nature of Relationship or Affiliation:

STEVE DIPIETRO IS ALSO A MEMBER AND MANAGER OF NORTH CANTON GOLF, LLC.

Person or Business Entity in Question 16 that has Relationship

First name:

Middle Name

Last Name:

Business Entity Name:

STARK TRANSLOADING, LLC

Related Business Entity:

Business Entity Name:

STARK TRANSLOADING, LLC

Related Business Entity's Address/Phone:

Number/Street/Suite Number:

City:

State:

410 OBERLIN AVENUE SW**MASSILLON****OH**

Country:

Zip:

Telephone:

United States**44647****330-493-3377**

Primary Business of Related Entity:

TRANSLOAD CEMENT STEEL FISH OIL PETROL PRODUCTS.

Nature of Relationship or Affiliation:

STEVE DIPIETRO IS ALSO A MEMBER AND MANAGER OF STARK TRANSLOADING, LLC.

Person or Business Entity in Question 16 that has Relationship

First name:

Middle Name

Last Name:

Business Entity Name:

RAIL CAR REPAIR, LLC

Related Business Entity:

Business Entity Name:

RAIL CAR REPAIR, LLC

Related Business Entity's Address/Phone:

Number/Street/Suite Number:

City:

State:

P.O. BOX 35427**CANTON****OH**

Country:

Zip:

Telephone:

United States**44735****330-493-3377**

Primary Business of Related Entity:

RAIL CARS REPAIR.

Nature of Relationship or Affiliation:

TEVE DIPIETRO IS ALSO A MEMBER AND MANAGER OF RAIL CAR REPAIR, LLC.

Person or Business Entity in Question 16 that has Relationship

First name:

Middle Name

Last Name:

Business Entity Name:

OHIO FREIGHT CAR SERVICES, LLC

Related Business Entity:

Business Entity Name:

OHIO FREIGHT CAR SERVICES, LLC

Related Business Entity's Address/Phone:

Number/Street/Suite Number:

City:

State:

P.O. BOX 35427**CANTON****OH**

Country:

Zip:

Telephone:

United States**44735****330-493-3377**

Primary Business of Related Entity:

RAIL CARS REPAIR.

Nature of Relationship or Affiliation:

STEVE DIPIETRO IS ALSO A MEMBER AND MANAGER OF OHIO FREIGHT CAR SERVICES, LLC.

Person or Business Entity in Question 16 that has Relationship

First name:	Middle Name	Last Name:	Business Entity Name:
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GES KIP, LLC

Related Business Entity:

Business Entity Name:

GES KIP, LLC

Related Business Entity's Address/Phone:

Number/Street/Suite Number:

City:

State:

P.O. BOX 35427**CANTON****OH**

Country:

Zip:

Telephone:

United States**44735****330-493-3377**

Primary Business of Related Entity:

ESTATE TRUST.

Nature of Relationship or Affiliation:

STEVE DIPIETRO IS ALSO A MEMBER AND MANAGER OF GES KIP, LLC.

Person or Business Entity in Question 16 that has Relationship

First name:

Middle Name

Last Name:

Business Entity Name:

TIGER SAND & GRAVEL, LLC

Related Business Entity:

Business Entity Name:

TIGER SAND & GRAVEL, LLC

Related Business Entity's Address/Phone:

Number/Street/Suite Number:

City:

State:

411 OBERLIN AVENUE SW**MASSILLON****OH**

Country:

Zip:

Telephone:

United States**44647****330-493-3377**

Primary Business of Related Entity:

SAND AND GRAVEL PROCESSING COMPANY.

Nature of Relationship or Affiliation:

STEVEDIPIETRO IS ALSO A MEMBER AND MANAGER OF TIGER SAND & GRAVEL, LLC.

Person or Business Entity in Question 16 that has Relationship

First name:

Middle Name

Last Name:

Business Entity Name:

BEAR MANAGEMENT, INC.

Related Business Entity:

Business Entity Name:

BEAR MANAGEMENT, INC.

Related Business Entity's Address/Phone:

Number/Street/Suite Number:

City:

State:

3700 COLUMBUS ROAD NE**CANTON****OH**

Country:

Zip:

Telephone:

United States**44705****330-493-3377**

Primary Business of Related Entity:

HOLDING COMPANY FOR PIZZA OVENS.

Nature of Relationship or Affiliation:

STEVE DIPIETRO IS ALSO A SHAREHOLDER, DIRECTOR, AND OFFICER OF BEAR MANAGEMENT, INC.

Person or Business Entity in Question 16 that has Relationship

First name:

Middle Name

Last Name:

Business Entity Name:

REPUBLIC LIGHT TRUCK REPAIR, INC.

Related Business Entity:

Business Entity Name:

REPUBLIC LIGHT TRUCK REPAIR, INC.

Related Business Entity's Address/Phone:

Number/Street/Suite Number:

City:

State:

410 OBERLIN AVENUE SW**MASSILLON****OH**

Country:

Zip:

Telephone:

United States**44647****330-493-3377**

Primary Business of Related Entity:

INSTALLATION COMPANY OF TARPS ON DUMP TRUCKS AND SEMI-TRUCK TRAILERS.

Nature of Relationship or Affiliation:

STEVE DIPIETRO IS ALSO A SHAREHOLDER, DIRECTOR, AND OFFICER OF REPUBLIC LIGHT TRUCK REPAIR, INC.

Person or Business Entity in Question 16 that has Relationship

First name:	Middle Name	Last Name:	Business Entity Name:
RSL RAILROAD LLC			

Related Business Entity:

Business Entity Name:

RSL RAILROAD LLC

Related Business Entity's Address/Phone:

Number/Street/Suite Number:	City:	State:
3700 COLUMBUS ROAD NE	CANTON	OH
Country:	Zip:	Telephone:
United States	44705	330-493-3377

Primary Business of Related Entity:

SURFACE TRANSPORTATION BOARD CERTIFIED SHORELINE RAILROAD.

Nature of Relationship or Affiliation:

STEV EDIPIETRO IS ALSO A MEMBER AND MANAGER OF RSL RAILROAD LLC.

PART G**CERTIFICATIONS****SOLE PROPRIETORSHIPS ONLY**

I, _____, certify under penalty of

(NAME OF SOLE PROPRIETOR)

perjury under the laws of the United States, that I have not been convicted, after September 1, 1989, of any Federal or State offense involving the distribution or possession of a controlled substance, or that if I have been so convicted, I am not ineligible to receive Federal benefits, either by court order or operation of law, pursuant to 21 U.S.C. 862.

Signature of Sole Proprietor

Date

Name

Title

ALL APPLICANTS INCLUDING SOLE PROPRIETORS

I certify that I have received and read a copy of the Commission's ocean transportation intermediary regulations, 46 C.F.R. Part 515, and pertinent sections of the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998 and the Coast Guard Authorization Act of 1998 (46 U.S.C. app. 40101 et seq.), governing the licensing of ocean transportation intermediaries, and that I will abide by all the provisions thereof from this date forward.

I further certify that I have specifically reviewed 46 C.F.R. § 515.42(h) (concerning the operations of licensees which are NVOCCs or which are related to NVOCCs) and 46 C.F.R. § 515.42(i) (concerning the operations of licensees which have a beneficial interest in merchandise exported from the United States by water or which are related to persons with a beneficial interest in merchandise exported from the United States by water).

I further certify that I shall not act as an ocean transportation intermediary as defined in section 3 of the Shipping Act of 1984, as amended by the Ocean Shipping Reform Act of 1998 and the Coast Guard Authorization Act of 1998, or perform ocean transportation intermediary services as defined in 46 C.F.R. Part 515, without a valid ocean transportation intermediary license by the Federal Maritime Commission.

Under penalties of perjury, I declare that I have examined this application and to the best of my knowledge and belief, it is true, correct and complete.

11/16/2021

Signature

Date

STEVE DIPIETRO

PRESIDENT

Name

Title

EXHIBIT B

From: [Aline Hull](#)
To: [Clifford Johnson](#); [Lee Stagg](#); [Cindy Hennigan](#)
Subject: RE: B & G FUTURES INC - Org no. 026512
Date: Wednesday, November 17, 2021 9:27:16 AM
Attachments: [224760_RW_Sec..pdf](#)

Thanks Cliff, please have him explain the attached – if his signature I suspect this was a business arrangement that went wrong after we approved/licensed vs false information submitted to FMC

From: Clifford Johnson <cjohnson@fmc.gov>
Sent: Wednesday, November 17, 2021 9:17 AM
To: Lee Stagg <lstagg@fmc.gov>; Aline Hull <Ahull@FMC.gov>; Cindy Hennigan <chennigan@fmc.gov>
Subject: RE: B & G FUTURES INC - Org no. 026512

FYI – The application has been submitted by DPI. It indicates Lorie Obrzut will be replacing Bob Waalkes as QI. As information, I just spoke to Bob Waalkes – he has indicated he never worked for, nor heard of, B & G Futures. I will be sending him a message asking him to confirm this in writing.

From: Clifford Johnson
Sent: Monday, November 15, 2021 3:46 PM
To: Lee Stagg <lstagg@fmc.gov>; Aline Hull <Ahull@fmc.gov>; Cindy Hennigan <Chennigan@fmc.gov>
Subject: FW: B & G FUTURES INC - Org no. 026512

FYI – I left a message for Chirag Vyas but have not received a return call. I also called, and spoke with, Steve DiPietro. Mr. DiPietro was insistent that DPI had been provided all the information needed to answer our questions and to complete the application. I told him we have not received that information. He was going to call DPI.

I believe their “previous QI” actually never worked for the company, as evidenced by the resume (attached). The FMC-18 application (110235) and the resume both indicate Mr. Waalkes worked at U.S. Pack Inc. from 9/2006 to 7/2017. However, it appears that Mr. Waalkes went to work for Rayarmor Automotive in July 2017 – and did not stay with B & G or perhaps was never employed by B & G. The FMC 18 Application was first submitted on 7/26/2017 and locked on 8/22/2017. The application was handled by an employee of B & G (not Mr. Waalkes).

If they submit the application this week, I suspect BOE will not want to pursue revocation, but I wanted to make it clear we are not happy that they have ignored our requests.

From: Clifford Johnson
Sent: Monday, November 15, 2021 3:22 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>
Cc: Chirag Vyas <tiku@bgfutures.com>; BGF Info <info@bgfutures.com>; jdevine@dpiusa.com; Lee

EXHIBIT C

WAIVER OF NOTICE OF SPECIAL MEETING OF THE BOARD OF
DIRECTORS OF B & G FUTURES INC.

Canton, Ohio

December 1, 2016 (Date)

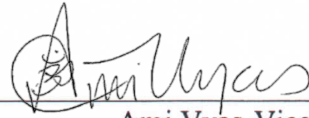
9:00 a.m. (Time)

The undersigned, being all of the Directors of **B & G FUTURES INC.**, do hereby waive notice and consent to the holding of the Special Meeting of the Board of Directors of said company, on December 1, 2016, at 9:00 a.m.

Dated: 12/1/2016



Steve DiPietro -President



Ami Vyas-Vice President

Being the Directors of B & G FUTURES INC

**ACTION BY WRITTEN CONSENT OF SPECIAL MEETING OF THE
BOARD OF DIRECTORS OF B & G FUTURES INC.**

Canton, Ohio
December 1, 2016 (Date)
9:00 a.m. (Time)

Pursuant to the waiver, which precedes these minutes, the Special meeting of the Board of Directors of B & G FUTURES INC., was held on December 1, 2016, at 9:00 a.m. for the purpose of transacting any and all business which may come before such meeting.

All of the directors were present.

The meeting was called to order by the President, STEVE DIPIETRO, who recorded.

A discussion was conducted regarding the election of ROBERT WAALKES as Secretary for the company.

Upon motion duly made, seconded and unanimously carried the following items were moved, seconded, approved and resolved:

- 1) RESOLVED, that ROBERT WAALKES was elected and accepts his position as Secretary of B & G FUTURES INC., as of December 1, 2016.
- 2) RESOLVED FURTHER, that the following individuals were elected to continue to serve as the following officers:

Offices

President
Vice-President
Secretary
Treasurer

Persons

Steve DiPietro
Ami Vyas
Robert Waalkes
Steve DiPietro

There being no further business, the meeting, on motion duly made, seconded and unanimously carried, was adjourned.

Dated: 12/1/16

Approved:

Steve DiPietro
Steve DiPietro – President

Ami Vyas
Ami Vyas – Vice-President

Robert Waalkes
Robert Waalkes – Secretary

EXHIBIT D

12:23



Robert >



I truly apologize for the confusion! I received the email and will contact them immediately and hope that this can be resolved quickly. I will give you an update after I contact them. Please keep me in mind as the biodiesel project progresses. I think that's very interesting. All the best!

No worries thank you very much. Yes absolutely. Your background in exports will be of huge help and it will allow you to stay where you are.

I sent an email to Aline to clarify and let them know I can be contacted at any time to clarify.

Ok great thank you very much

Tue, Oct 11 at 12:44

Hi Robert hope all is well. Can you forward me a copy of the email you sent to FMC to



iMessage



EXHIBIT E

Subject: Aline Letter - FMC

Date: Tuesday, October 11, 2022 at 8:22:31 PM Eastern Daylight Time

From: Bob Waalkes

To: tiku@bgfutures.com

Hello,

I've searched throughout my laptop for the email to Aline at the FMC. Unfortunately, I am unable to locate it. I have a new computer since that email was sent because of a crash. I thought it would have been saved in my archives, but unable to find anything.

Please let me know if there is anything I can do to help.

Best,

Bob Waalkes

rjwaalkes@gmail.com

EXHIBIT F

**BEFORE THE
FEDERAL MARITIME COMMISSION**

FEDERAL MARITIME COMMISSION, <i>Complainant,</i>	)	
v.	)	
B & G FUTURES INC. <i>Respondents.</i>	)	DOCKET NO. 22-25

AFFIDAVIT OF ROBERT WAALKES

1. My name is Robert Waalkes. I served as Secretary of B&G Futures, Inc. ("B&G") from December 1, 2016 to October 25, 2020.

2. During a portion of that period, I was identified as the Qualifying Individual ("QI") for purposes of B&G's ocean transportation intermediary license with the Federal Maritime Commission.

3. In November of 2021, I mistakenly informed representatives of the Federal Maritime Commission that I had never heard of B&G.

4. I have a medical condition which, when untreated (as it was in November of 2021), can impair my ability to recall past events accurately. When my condition is being properly treated (as it is at present), I have no such impairment.

Further affiant sayeth not.



Robert Waalkes 11/22/2022

EXHIBIT G

Subject: Fwd: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED
Date: Thursday, August 25, 2022 at 8:21:23 PM Eastern Daylight Time
From: Steve DiPietro - BGF
To: Chirag Vyas
Attachments: image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png, image001.png

This is interesting

Sent from my iPhone

Begin forwarded message:

From: Annie Nguyen <Annie@dpiusa.com>
Date: August 25, 2022 at 7:47:21 PM EDT
To: Steve DiPietro - BGF <steve@bgfutures.com>, Lorie Obrzut <lorie@bgfutures.com>
Cc: "James E. Devine" <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 25AUG2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Best Regards,
Annie Nguyen
Licensing & Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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This email and any files transmitted with it may contain confidential information. If you are not the intended recipient or believe that you may have received this communication in error, please advise the sender via reply mail and delete the email you received.

From: Annie Nguyen
Sent: Friday, August 19, 2022 3:58 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 19AUG2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiousa.com



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From: Annie Nguyen
Sent: Friday, August 12, 2022 3:38 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiousa.com>; James E. Devine <jdevine@dpiousa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 12AUG2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiousa.com



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From: Annie Nguyen
Sent: Friday, August 5, 2022 4:55 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>

Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>

Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 05AUG2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen

Sent: Friday, July 29, 2022 5:16 PM

To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>

Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>

Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 29JUL2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen

Sent: Friday, July 22, 2022 4:30 PM

To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>

Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>

Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 22JUL2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Annie Nguyen

Licensing and Registrations Manager

T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen

Sent: Friday, July 15, 2022 4:43 PM

To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>

Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>

Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 15JUL2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Annie Nguyen

Licensing and Registrations Manager

T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, July 8, 2022 4:50 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 08JUL2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, July 1, 2022 4:01 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 01JUL2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Thursday, June 23, 2022 4:34 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 23JUN2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing & Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, June 17, 2022 4:59 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 17JUN2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, June 10, 2022 4:12 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 10JUN2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, June 3, 2022 4:55 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 03JUN2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Thursday, May 26, 2022 2:26 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 26MAY2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, May 20, 2022 1:42 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 20MAY2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, May 13, 2022 4:55 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 13MAY2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, May 6, 2022 1:50 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 06MAY2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, April 29, 2022 3:57 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 29APR2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, April 22, 2022 2:42 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 22APR2022. We are following up

with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Thursday, April 14, 2022 3:19 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 14APR2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing & Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, April 08, 2022 5:15 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 08APR2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, April 1, 2022 4:42 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 01APR2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, March 25, 2022 3:53 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 25MAR2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, March 18, 2022 4:18 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

H Steve,

Please be advised there is no news on your application as of today 18MAR2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, March 4, 2022 4:53 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 04MAR2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,
Annie Nguyen
Licensing and Registrations Manager
T: 510-273-8933 Ext. 103 W: dpiusa.com



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From: Annie Nguyen
Sent: Friday, February 25, 2022 2:47 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED
Importance: High

Hi Steve,

Please be advised there is no news on your application as of today 25FEB2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Annie Nguyen
Distribution-Publications, Inc. (DPI)
1999 Harrison Street, Suite 650
Oakland, CA 94612 USA
Tel: 510-273-8933 Fax: 510-273-8959
Email: annie@dpiusa.com Web: www.dpiusa.com

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From: Annie Nguyen
Sent: Friday, February 18, 2022 3:36 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>

Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 18FEB2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Annie Nguyen
Distribution-Publications, Inc. (DPI)
1999 Harrison Street, Suite 650
Oakland, CA 94612 USA
Tel: 510-273-8933 Fax: 510-273-8959
Email: annie@dpiusa.com Web: www.dpiusa.com

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From: Annie Nguyen
Sent: Friday, February 11, 2022 4:44 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 11FEB2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Annie Nguyen
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Oakland, CA 94612 USA
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From: Annie Nguyen
Sent: Friday, February 4, 2022 2:45 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 04FEB2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Annie Nguyen
Distribution-Publications, Inc. (DPI)
1999 Harrison Street, Suite 650
Oakland, CA 94612 USA
Tel: 510-273-8933 Fax: 510-273-8959
Email: annie@dpiusa.com Web: www.dpiusa.com

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From: Annie Nguyen
Sent: Friday, January 7, 2022 3:35 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 07JAN2022. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Annie Nguyen
Distribution-Publications, Inc. (DPI)
1999 Harrison Street, Suite 650
Oakland, CA 94612 USA
Tel: 510-273-8933 Fax: 510-273-8959
Email: annie@dpiusa.com Web: www.dpiusa.com

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From: Annie Nguyen
Sent: Friday, December 31, 2021 1:31 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 31DEC2021. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Annie Nguyen
Distribution-Publications, Inc. (DPI)
1999 Harrison Street, Suite 650
Oakland, CA 94612 USA
Tel: 510-273-8933 Fax: 510-273-8959
Email: annie@dpiusa.com Web: www.dpiusa.com

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This email and any files transmitted with it may contain privileged or otherwise confidential information. If you are not the intended recipient or believe that you may have received this communication in error, please advise the sender via reply mail and delete the email you received.

From: Annie Nguyen
Sent: Friday, December 17, 2021 4:44 PM
To: Steve DiPietro - BGF <steve@bgfutures.com>; Lorie Obrzut <lorie@bgfutures.com>
Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Steve,

Please be advised there is no news on your application as of today 17DEC2021. We are following up with the FMC on a daily basis and will keep you advised on the status of the application once available.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Annie Nguyen
Distribution-Publications, Inc. (DPI)
1999 Harrison Street, Suite 650
Oakland, CA 94612 USA
Tel: 510-273-8933 Fax: 510-273-8959
Email: annie@dpiusa.com Web: www.dpiusa.com

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From: Steve DiPietro - BGF <steve@bgfutures.com>

Sent: Thursday, December 9, 2021 4:01 PM

To: Annie Nguyen <Annie@dpiusa.com>; Lorie Obrzut <lorie@bgfutures.com>

Cc: Publishing <Publishing@dpiusa.com>; James E. Devine <jdevine@dpiusa.com>

Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Thank you very much for helping get this done

Sent from my Verizon, Samsung Galaxy smartphone

----- Original message -----

From: Annie Nguyen <Annie@dpiusa.com>

Date: 12/9/21 6:48 PM (GMT-05:00)

To: Lorie Obrzut <lorie@bgfutures.com>

Cc: Publishing <Publishing@dpiusa.com>, Steve DiPietro - BGF <steve@bgfutures.com>, "James E. Devine" <jdevine@dpiusa.com>

Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - LOCKED

Hi Lorie,

Please be advised that your application was recommended for approval and sent to the "final review committee." This is good news!

The final review committee at the FMC License Office will review the analyst's work - then they normally do one of three things:

- a. Send us a letter confirming your application has been "found qualified for licensing" and request the bond – or –
- b. Direct **Ms. Jaidyn Schulke** to ask additional questions about your application – or –
- c. Direct an FMC Attorney research legal issues (if any) related your application.

All the work we have jointly done of your application is designed to get us option a). Chances are good we will achieve this within the next 2-3 weeks, but this is just my best guess, and no guarantee.

Once we receive this "found qualified" letter we will pass this along to you accordingly.

We have tried to anticipate all questions the FMC might ask and answer them in your application, but it is possible the final review committee will direct **Ms. Jaidyn Schulke** to ask additional questions about your application. If that happens we will work with you answer the questions. That would add more time to the processing and delay the "found qualified" letter for your application by a few more weeks.

Best Regards,

Annie Nguyen
Distribution-Publications, Inc. (DPI)
1999 Harrison Street, Suite 650
Oakland, CA 94612 USA
Tel: 510-273-8933 Fax: 510-273-8959
Email: annie@dpiusa.com Web: www.dpiusa.com

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From: Lorie Obrzut <lorie@bgfutures.com>
Sent: Thursday, December 02, 2021 8:27 AM
To: James E. Devine <jdevine@dpiusa.com>
Cc: Annie Nguyen <Annie@dpiusa.com>; Publishing <Publishing@dpiusa.com>; Steve DiPietro - BGF <steve@bgfutures.com>
Subject: Re: B & G FUTURES INC. - FMC-OTI License Application Status - REFERENCE REPLIES roni

Ok thanks

Sent from my iPhone

On Dec 2, 2021, at 11:26 AM, James E. Devine <jdevine@dpiusa.com> wrote:

Hi Lorie,
Thanks. Yes, she has. That was just my typo.

Cheers!
J.Devine/DPI
email: jdevine@dpiusa.com / phone: +1-510-273-8933 ext. 101 / web:
www.dpiusa.com

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From: Lorie Obrzut <lorie@bgfutures.com>
Sent: Thursday, December 2, 2021 8:06 AM
To: James E. Devine <jdevine@dpiusa.com>
Cc: Annie Nguyen <Annie@dpiusa.com>; Publishing <Publishing@dpiusa.com>; Steve DiPietro - BGF <steve@bgfutures.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - REFERENCE REPLIES roni

James,

Hopefully, Jaidyn can update MS. Neroni email address to include .com

Many thanks

Lorie Obrzut

B&G Futures

Cell: 440-840-8930

1-888-504-5777

<http://www.bgfutures.com>

From: James E. Devine <jdevine@dpiusa.com>
Sent: Thursday, December 2, 2021 10:54 AM
To: Lorie Obrzut <lorie@bgfutures.com>
Cc: Annie Nguyen <Annie@dpiusa.com>; Publishing <Publishing@dpiusa.com>; Steve DiPietro - BGF <steve@bgfutures.com>
Subject: Re: B & G FUTURES INC. - FMC-OTI License Application Status - REFERENCE REPLIES

Hi Lorie,

Thanks for your message.

Yes, FMC confirms Peggy & Randy replied.

FMC has not heard back from Ms. Gibson or Ms. Neroni.

Jaidyn Schulke of FMC advises she sent reminders to them yesterday but no responses yet.

Please follow up as needed.

At least 3 reference responses are required by FMC for approval

Cheers!

J.Devine/DPI

On Dec 2, 2021, at 7:43 AM, Lorie Obrzut <lorie@bgfutures.com> wrote:

James,

I know Peggy and Randy replied. I believe Vickie email should be vickie.neroni@msc.com. Please advise if you can have the email address updated. I will check with Mary.

Many thanks

Lorie Obrzut

B&G Futures

Cell: 440-840-8930

1-888-504-5777

<http://www.bgfutures.com>

From: James E. Devine <jdevine@dpiusa.com>
Sent: Wednesday, December 1, 2021 8:30 PM
To: Lorie Obrzut <lorie@bgfutures.com>
Cc: Annie Nguyen <Annie@dpiusa.com>; Publishing <Publishing@dpiusa.com>; Steve DiPietro - BGF <steve@bgfutures.com>
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Status - REFERENCE REPLIES

Hi Lorie,
I hope your Thanksgiving holiday was fine. Can you please advise which of your references have confirmed to you they responded to the email from Ms. Jaidyn Schulke of FMC?

Mary Gibson, MARY.GIBSON@UPS.COM
Peggy Lee, PLEE@LEWCOINC.COM
Randy Fraley, RFRALEY@SHIPCO.COM
Vickie Neroni, vickie.neroni@msc

Cheers!

J.Devine/DPI

email: jdevine@dpiusa.com / phone: +1-510-273-8933 ext. 101 / web: www.dpiusa.com

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From: James E. Devine
Sent: Tuesday, November 23, 2021 11:58 AM
To: lorie@bgfutures.com
Cc: Annie Nguyen <Annie@dpiusa.com>; Publishing <Publishing@dpiusa.com>; steve@bgfutures.com
Subject: RE: B & G FUTURES INC. - FMC-OTI License Application Acknowledgement Letter

Attn: LORIE OBRZUT

The attached letter was sent to us today by the Federal Maritime Commission to acknowledge receipt of your application, and to advise it has been assigned to one of the staff (**Ms. Jaidyn Schulke**) in the FMC License office, who will review all the details of your application and supporting documents and contact your references. This is a normal part of the FMC process.

Your references have been sent email today from Jaidyn Schulke, whose email is jschulke@fmc.gov - each reference and must respond to her directly via email. For your guidance, here is quick summary of your references:

Mary Gibson, MARY.GIBSON@UPS.COM
Peggy Lee, PLEE@LEWCOINC.COM
Randy Fraley, RFRALEY@SHIPCO.COM
Vickie Neroni, vickie.neroni@msc

If your references are not sure how to describe your ocean shipping experience, I suggest you pass them a copy of the CHECKLIST attached to your application, which gives all the details. Of course, references must respond to the FMC's questions honestly and accurately. If they have questions about any aspect of this FMC requirement please feel free to contact me or Annie.

Each reference must respond to the FMC within the 20 calendar days deadline – 12Dec2021 – please do not miss this deadline.

Please do not hesitate to contact us if you have any questions and we look forward to hearing from you shortly. Annie will return from her vacation next week.

Cheers!

J.Devine/DPI

email: jdevine@dpiusa.com / phone: +1-510-273-8933 ext. 101 / web: www.dpiusa.com

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From: Publishing

Sent: Tuesday, November 16, 2021 2:47 PM

To: lorie@bgfutures.com; steve@bgfutures.com

Cc: James E. Devine <jdevine@dpiusa.com>; Annie Nguyen <Annie@dpiusa.com>

Subject: B & G FUTURES INC. - FMC-OTI License Application Status Report

Importance: High

November 16, 2021

Via Email: lorie@bgfutures.com

Cc: steve@bgfutures.com

B & G FUTURES INC.

3700 COLUMBUS ROAD NE
CANTON, OH 44705

Subject: FMC License Amendment Status

Attn: LORIE OBRZUT

This is to confirm your company's application to amend/update your FMC-OTI license was submitted electronically to the FMC License Office today. A complete copy is attached. This is our first status report to you on the processing. The FMC processing takes about 60 days.

Within the next two weeks, your application will be assigned to one of the analysts in the FMC license office, who will review all the details of your application and supporting documents and contact your references via email. Each reference must confirm your ocean experience as stated in your application. We will learn the name of the FMC analyst who will contact your references and advise it to you. If there are any problems with the reference checks we will assist.

The reference check is a key part of the FMC review process. If your references are not sure how to describe your experience, I suggest you pass them a copy of the CHECKLIST attached to your application, which gives all the details. Of course, references must respond to the FMC's questions honestly and accurately.

The FMC analyst who is assigned to review your application may also call you directly on your company's office phone number just to verify the number works.

We expect it will take FMC another 60 to days to process this application. Once the FMC is satisfied with the references, and application is processed and approved, we will receive a letter from FMC confirming your status as the FMC Qualifying Individual. We will forward this to you when available.

Also note, if there are any changes to your company officers or shareholders or related entities (as listed in question 18 of your application) while your application is under processing at FMC these must be reported to the FMC promptly.

Please do not hesitate to contact us if you have any questions.

Best Regards,

Yiduo Chen

Distribution-Publications, Inc. (DPI)

1999 Harrison Street, Suite 650

Oakland, CA 94612 USA

Tel: 510-273-8933| Fax: 510-273-8959

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Subject: FW: B & G FUTURES INC - Org no. 026512
Date: Friday, January 21, 2022 at 11:32:08 AM Eastern Standard Time
From: Steve DiPietro - BGF
To: Chirag Vyas
Attachments: image001.jpg, image002.jpg



Steve DiPietro
3700 Columbus Rd NE
Canton, OH 44705
steve@bgfutures.com
330-493-0034

From: Steve DiPietro - BGF
Sent: Tuesday, October 12, 2021 3:54 PM
To: Clifford Johnson <cjohnson@fmc.gov>
Cc: Chirag Vyas <tiku@bgfutures.com>; BGF Info <info@bgfutures.com>
Subject: RE: B & G FUTURES INC - Org no. 026512

Clifford

We apologize for not answering you sooner. We were under the assumption DPI updated our QI.

We will have this updated immediately.

My cell is 330-704-6811 Chirag's is 248-928-6086 , we are available 24 hrs.

Best Regards ,



Steve DiPietro
3700 Columbus Rd NE

Canton, OH 44705
steve@bgfutures.com
Off 330-493-0034
Cell 330-704-6811

From: Clifford Johnson <cjohnson@fmc.gov>
Sent: Friday, October 08, 2021 8:44 AM
To: Steve DiPietro - BGF <steve@bgfutures.com>
Cc: jdevine@dpiusa.com; Chirag Vyas <tiku@bgfutures.com>; BGF Info <info@bgfutures.com>
Subject: RE: B & G FUTURES INC - Org no. 026512

Dear Mr. Dipietro,

Please confirm that Mr. Robert Waalkes is a full-time employee and officer of B & G Futures Inc.

Sincerely,
Cliff Johnson

From: Clifford Johnson
Sent: Tuesday, October 5, 2021 7:31 AM
To: INFO@BGFUTURES.COM
Cc: jdevine@dpiusa.com; OTI Bonds <OTIBonds@FMC.gov>; suretyservice@hudsoninsgroup.com
Subject: FW: B & G FUTURES INC - Org no. 026512

Thank you, it's good that you send this reinstatement notice – we have no record of receiving this notice from your surety company. Your message and the reinstatement notice have been forwarded to otibonds@fmc.gov.

From: BGF Info <info@bgfutures.com>
Sent: Monday, October 4, 2021 9:54 PM
To: Clifford Johnson <cjohnson@fmc.gov>
Cc: jdevine@dpiusa.com
Subject: Re: B & G FUTURES INC - Org no. 026512

Hi Mr. Johnson,

Attached please find the copy showing the policy will not be canceled. Should you have any additional questions; please free to contact me.

Thanks,
B & G Futures Team



From: Clifford Johnson <cjohnson@fmc.gov>
Date: Monday, October 4, 2021 at 11:23 AM
To: BGF Info <info@bgfutures.com>
Cc: "jdevine@dpiusa.com" <jdevine@dpiusa.com>
Subject: B & G FUTURES INC - Org no. 026512

Dear Chirag Vyas,

The Federal Maritime Commission (FMC) has been notified that the ocean freight forwarder bond of B & G FUTURES INC will be cancelled effective October 9, 2021. As a result, the ocean freight forwarder portion of the license issued by the FMC to B & G FUTURES INC will be automatically revoked. If you believe this is an error, contact your surety representative and instruct them to send a rescission of the bond cancellation or a replacement bond to otibonds@fmc.gov prior to October 9, 2021.

Sincerely,

Cliff Johnson
Bureau of Certification and Licensing
Federal Maritime Commission
(202)523-5787

*NOTE: Due to COVID-19, the Federal Maritime Commission, Bureau of Certification and Licensing (BCL) is working remotely and has **limited access to documents delivered by courier or mail**. In order to enable BCL to provide the same level of service as was previously provided, **we recommend you send documents as email attachments** whenever possible. Thank you!*

From: Shared_Hudson_SuretyService <SuretyService@Hudsoninsgroup.com>
Sent: Thursday, September 9, 2021 4:48 PM
To: BCL <BCL@FMC.gov>
Subject: B & G Futures Inc. - 10062910 - cancellation

Hi Everyone,

Please process the cancellation for the attached bond

Thank you



Shruthi Raju
Service Team member
Hudson Insurance Group
1035 Greenwood Blvd., Suite 265
Lake Mary, FL 32746
T 888-400-5505
E suretyservice@hudsoninsgroup.com

For more information about our Commercial Surety products, please visit [Hudson's Surety web page](#) and be sure to view our [Commercial Surety materials](#).

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